



Bill Number: H.B. 2406

Rogers Floor Amendment

**Reference to: JUDICIARY AND ELECTIONS S/E
Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows records relating to a deceased minor to be disclosed to child welfare agencies and child fatality review teams.
2. Allows records relating to child abuse to be disclosed to a medical examiner and the court and allows the Department of Child Safety to disclose such records in accordance with statutorily outlined permissions.
3. Removes call transcripts from the list of items that are considered to be child abuse records.
4. Requires, rather than allows, a prosecutor to disclose records relating to a deceased minor to the defendant's attorney.
5. Allows the defendant's attorney to share records with a person who is employed to assist with the defense in the criminal case, except that records may not be further disseminated without a court order.
6. Allows a county medical examiner to disclose specified records to a defense attorney or a petitioner in a criminal proceeding or postconviction proceeding for the purpose of assisting with the attorney's representation.
7. Allows the parent or legal guardian of the deceased minor or the personal representative of the deceased minor's estate to disclose records relating to the deceased minor.
8. Allows such records to be disseminated to any person or entity for any purpose related to investigating an insurance claim, or the prosecution or defense of a personal injury or wrongful death claim relating to the deceased minor.
9. Specifies that restrictions on the release of death scene images that depict the location of a minor's death only apply if the location of the minor's death is actually known.
10. Removes the class 6 felony designation for the unlawful disclosure of specified images by a government employee.
11. Makes technical and conforming changes.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2406
(Reference to JUDICIARY AND ELECTIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 11-594, Arizona Revised Statutes, is amended to
4 read:

5 11-594. Powers and duties of county medical examiner

6 A. The county medical examiner or alternate medical examiner shall
7 direct a death investigation and, on a determination that the
8 circumstances of the death provide jurisdiction pursuant to section
9 11-593, subsection B, shall:

10 1. Take charge of the dead body.

11 2. Determine if an autopsy is required.

12 3. Certify to the cause and manner of death following completion of
13 the death investigation, reduce the findings to writing and promptly make
14 a full report on forms prescribed for that purpose.

15 4. Have subpoena authority for all documents, records and papers
16 deemed useful in the death investigation.

17 5. Execute a death certificate provided by the state registrar of
18 vital statistics indicating the cause and the manner of death for those
19 bodies for which a death investigation has been conducted and jurisdiction
20 is assumed.

21 6. Give approval for cremation or alkaline hydrolysis of a dead
22 body after a death investigation and record the approval on the death
23 certificate.

24 7. Notify the county attorney or other law enforcement authority
25 when death is found to be from nonnatural causes.

26 8. Carry out the duties specified under section 28-668.

1 9. Carry out the duties specified under title 36, chapter 7,
2 article 3.

3 10. Provide a blood sample from a deceased person for the purpose
4 of communicable disease testing pursuant to sections 13-1210 and 36-670 if
5 the blood is available and the collection or release will not interfere
6 with a medical examination, autopsy or certification of death.

7 11. Observe all policies adopted by the board of supervisors
8 regarding conflicts of interest and disclosure of noncounty employment.

9 B. The county medical examiner or alternate medical examiner may:

10 1. Assign to a medical death investigator or other qualified
11 personnel all aspects of a death investigation except performing
12 autopsies.

13 2. Authorize forensic pathologists to perform examinations and
14 autopsies. The medical examiner or alternate medical examiner may
15 authorize medical students or residents and fellows in pathology training
16 to perform autopsies under the supervision of a licensed physician who is
17 board certified in forensic pathology, pursuant to procedures adopted by
18 the county medical examiner or alternate medical examiner. Authorization
19 and the amount to be paid by the county for pathology services are subject
20 to approval of the board of supervisors.

21 3. Authorize pathologist assistants to assist with performing
22 autopsies under the direct supervision of a licensed physician who is
23 board certified in forensic pathology, pursuant to procedures adopted by
24 the county medical examiner or alternate medical examiner. A pathologist
25 assistant may not certify a cause of death or independently perform an
26 autopsy.

27 4. Delegate any power, duty or function, whether ministerial or
28 discretionary, vested by this chapter in the medical examiner or alternate
29 medical examiner to a person meeting the qualifications prescribed in this
30 chapter who is employed by or who has contracted with the county to
31 provide death investigation services. The medical examiner or alternate
32 medical examiner shall be responsible for the official acts of the person
33 designated pursuant to this section and shall act under the name and
34 authority of the medical examiner or alternate medical examiner.

35 5. Authorize the taking of organs and tissues as they prove to be
36 usable for transplants, other treatment, therapy, education or research if
37 all of the requirements of title 36, chapter 7, article 3 are met. The
38 medical examiner or alternate medical examiner shall give this
39 authorization within a time period that allows a medically viable
40 donation.

41 6. Authorize licensed physicians, surgeons or trained technicians
42 to remove parts of bodies provided they follow an established protocol
43 approved by the medical examiner or alternate medical examiner.

44 7. Limit the removal of organs or tissues for transplants or other
45 therapy or treatment if, based on a review of available medical and
46 investigative information within a time that allows a medically viable
47 donation, the medical examiner or alternate medical examiner makes an
48 initial determination that their removal would interfere with a medical
49 examination, autopsy or certification of death. Before making a final

1 decision to limit the removal of organs, the medical examiner or alternate
2 medical examiner shall consult with the organ procurement organization.
3 After the consultation and when the organ procurement organization
4 provides information that the organ procurement organization reasonably
5 believes could alter the initial decision and at the request of the organ
6 procurement organization, the medical examiner or alternate medical
7 examiner shall conduct a physical examination of the body. If the medical
8 examiner or alternate medical examiner limits the removal of organs, the
9 medical examiner or alternate medical examiner shall maintain
10 documentation of this decision and shall make the documentation available
11 to the organ procurement organization.

12 C. A county medical examiner or alternate medical examiner shall
13 not be held civilly or criminally liable for any acts performed in good
14 faith pursuant to subsection A, paragraph 10 and subsection B, paragraphs
15 5, 6 and 7 of this section.

16 D. If a dispute arises over the findings of the medical examiner's
17 report, the medical examiner, on an order of the superior court, shall
18 make available all evidence and documentation to a court-designated
19 licensed forensic pathologist for review, and the results of the review
20 shall be reported to the superior court in the county issuing the order.

21 E. For providing external examinations and autopsies pursuant to
22 this section, the medical examiner may charge a fee established by the
23 board of supervisors pursuant to section 11-251.08.

24 F. The county medical examiner or alternate medical examiner is
25 entitled to all medical records and related records of a person for whom
26 the medical examiner is required to certify cause of death.

27 G. NOTWITHSTANDING SECTION 11-597.02 AND TITLE 39, CHAPTER 1,
28 AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES DEPICTING THE
29 BODY OF A DECEASED MINOR ARE CONFIDENTIAL AND ARE NOT SUBJECT TO PUBLIC
30 DISCLOSURE.

31 H. RECORDS PROHIBITED FROM DISCLOSURE PURSUANT TO SUBSECTION G OF
32 THIS SECTION MAY BE RELEASED ONLY TO THE FOLLOWING:

33 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR.

34 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
35 MINOR.

36 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR [CHILD WELFARE AGENCY AS
37 DEFINED IN SECTION 8-501] OR COURT FOR THE PURPOSE OF AN INVESTIGATION OR
38 [CRIMINAL] [COURT] PROCEEDING.

39 4. A PERSON WHO IS AUTHORIZED BY A COURT ON A FINDING OF GOOD
40 CAUSE.

41 [5. A CHILD FATALITY REVIEW TEAM ESTABLISHED PURSUANT TO TITLE 36,
42 CHAPTER 35.

43 6. AN ATTORNEY FOR THE DEFENDANT OR PETITIONER IN A CRIMINAL OR
44 POSTCONVICTION PROCEEDING FOR THE PURPOSE OF ASSISTING THE ATTORNEY'S
45 REPRESENTATION IN THAT PROCEEDING.]

1 Sec. 2. Section 13-4434, Arizona Revised Statutes, is amended to
2 read:

3 13-4434. Victim's right to privacy: redaction of victim's
4 name; deceased minor's pictures and videos;
5 exceptions; definitions

6 A. The victim has the right at any court proceeding not to testify
7 regarding any identifying or locating information unless the victim
8 consents or the court orders disclosure on finding that a compelling need
9 for the information exists. A court proceeding on the motion shall be in
10 camera.

11 B. A victim's identifying and locating information that is
12 obtained, compiled or reported by a law enforcement agency or prosecution
13 agency shall be redacted by the originating agency and prosecution
14 agencies from records pertaining to the criminal case involving the
15 victim, including discovery disclosed to the defendant, the defendant's
16 attorney or any of the attorney's staff.

17 C. AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES
18 DEPICTING THE BODY OF A DECEASED MINOR ARE CONFIDENTIAL, AND THE MINOR
19 VICTIM'S LAWFUL REPRESENTATIVE, PARENT OR LEGAL GUARDIAN HAS A RIGHT TO
20 NOT HAVE THE IMAGE OR RECORDING DISCLOSED TO ANYONE EXCEPT AS SPECIFICALLY
21 PROVIDED BY LAW OR COURT RULE.

22 ~~C.~~ D. Subsection B of this section does not apply to:

23 1. The victim's name except, if the victim is a minor, the victim's
24 name may be redacted from public records pertaining to the crime if the
25 countervailing interests of confidentiality, privacy, the rights of the
26 minor or the best interests of this state outweigh the public interest in
27 disclosure.

28 2. Any records that are transmitted between law enforcement
29 AGENCIES and prosecution agencies or a court.

30 3. Any records if the victim or, if the victim is a minor, the
31 victim's LAWFUL representative as designated under section 13-4403 has
32 consented to the release of the information.

33 4. The general location at which the reported crime occurred.

34 5. The victim's address, if the victim's address appears in any
35 body-worn camera footage, photographs or other visual or audio depictions
36 and there is evidence that the defendant knows the victim's address
37 because of a relationship set forth in section 13-3601, subsection A.

38 ~~D.~~ E. Notwithstanding subsections A and B of this section, a court
39 may order the victim's identifying and locating information to be
40 disclosed in a specific case if it is necessary to protect the defendant's
41 constitutional rights or when the information is not reasonably able to be
42 redacted because of undue burden or expense. Before the court discloses
43 the information, the victim must be notified and has the right to be heard
44 by the court. If the disclosure is made to the defendant's attorney, the
45 defendant's attorney may not disclose the information to any person other
46 than the attorney's staff and a designated investigator. The defendant's
47 attorney may not provide the disclosed information to the defendant
48 without specific authorization from the court.

1 ~~F.~~ F. On the request of a victim, the victim's name that is
2 obtained, compiled or reported by a law enforcement agency or prosecution
3 agency may be redacted by the originating agency and prosecution agencies
4 from records that pertain to the criminal case involving the victim and
5 that are released pursuant to a public records request if the agency
6 reasonably expects that the release of the victim's name will result in
7 harassment of the victim, threats to the victim's safety or witness
8 tampering.

9 ~~F.~~ G. Subsection ~~F~~ F of this section does not apply to any of the
10 following:

11 1. Any record that is transmitted between law enforcement agencies
12 and prosecution agencies or a court or that is disclosed to the defendant,
13 the defendant's attorney or any of the attorney's staff.

14 2. Any record regarding a victim who is deceased.

15 3. Any record if the victim or, if the victim is a minor or
16 vulnerable adult as defined in section 13-3623, the victim's **LAWFUL**
17 representative as designated under section 8-384 or 13-4403, ~~has~~
18 consented to the release of the information.

19 4. Any record that a court of competent jurisdiction has ordered to
20 be disclosed or **FOR WHICH** a rule of procedure requires the release ~~of a~~
21 ~~record~~ to a party.

22 5. Any record if the law enforcement agency or prosecution agency
23 has received a notice of final disposition in the criminal case.

24 ~~G.~~ H. For the purposes of this section:

25 1. "Identifying information" includes a victim's date of birth,
26 social security number and official state or government issued driver
27 license or identification number.

28 2. "Locating information" includes the victim's address, telephone
29 number, email address and place of employment.

30 Sec. 3. Section 39-121.04, Arizona Revised Statutes, is amended to
31 read:

32 39-121.04. Public access to law enforcement records depicting
33 certain witnesses or crime victims; victim
34 rights; applicability

35 A. In a special action brought pursuant to this article for the
36 release of any record created or received by or in the possession of a law
37 enforcement **AGENCY** or prosecution agency that relates to a criminal
38 investigation or prosecution and that visually depicts the image of a
39 witness under eighteen years of age or a victim as defined in section
40 13-4401, the petitioner shall establish that the public's interest in
41 disclosure outweighs the witness's or victim's right to privacy.

42 B. A victim whose image is depicted in a record described in
43 subsection A of this section has the right to be present at and to be
44 heard in any action brought pursuant to this article for the release of
45 records described in subsection A of this section.

1 C. THIS SECTION DOES NOT APPLY TO ANY PHOTOGRAPH, VIDEO RECORDING,
2 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
3 RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION THAT SHOWS THE
4 BODY OF A DECEASED MINOR OR DEPICTS THE ~~[SCENE OF]~~ [LOCATION WHERE] THE
5 DEATH ~~[OF A DECEASED MINOR]~~ [OCCURRED, IF KNOWN].

6 Sec. 4. Title 39, chapter 1, Arizona Revised Statutes, is amended
7 by adding article 6, to read:

8 ARTICLE 6. RECORDS OF MINOR VICTIMS

9 39-174. Definitions

10 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

11 1. "CHILD ABUSE RECORD" MEANS ANY PHOTOGRAPH, VIDEO RECORDING,
12 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
13 RECORDING, SURVEILLANCE RECORDING, FORENSIC INTERVIEW RECORDING, AUDIO
14 RECORDING, 911 EMERGENCY SERVICE TELEPHONE CALL RECORDING ~~[OR CALL~~
15 ~~TRANSCRIPT]~~ OR OTHER VISUAL OR AUDIO DEPICTION THAT SHOWS OR DESCRIBES A
16 MINOR WHO IS THE VICTIM OF CHILD ABUSE AS PRESCRIBED IN SECTION 13-3623 OR
17 THAT IS CREATED DURING A CRIMINAL INVESTIGATION FOR ALLEGED CHILD ABUSE.

18 [2. "CHILD WELFARE AGENCY" HAS THE SAME MEANING PRESCRIBED IN
19 SECTION 8-501.]

20 ~~[2.]~~ [3.] "DEATH SCENE IMAGE" MEANS ANY PHOTOGRAPH, VIDEO
21 RECORDING, DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR
22 DASH CAMERA RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION
23 THAT SHOWS THE BODY OF A DECEASED MINOR OR DEPICTS THE ~~[SCENE OF]~~
24 [LOCATION WHERE] THE DEATH ~~[OF A DECEASED MINOR]~~ [OCCURRED, IF KNOWN].

25 ~~[3.]~~ [4.] "DECEASED MINOR" MEANS A PERSON WHO IS UNDER EIGHTEEN
26 YEARS OF AGE AT THE TIME OF THE PERSON'S DEATH.

27 ~~[4.]~~ [5.] "EMERGENCY CALL RECORDING" MEANS ANY AUDIO RECORDING ~~[OR~~
28 ~~TRANSCRIPT]~~ OF A 911 EMERGENCY SERVICE TELEPHONE CALL OR OTHER EMERGENCY
29 COMMUNICATION THAT RELATES TO A DECEASED MINOR'S DEATH.

30 ~~[5.]~~ [6.] "MONETIZE" MEANS TO SELL, LICENSE, DISTRIBUTE FOR
31 COMPENSATION OR USE AN IMAGE TO GENERATE ADVERTISING REVENUE OR FINANCIAL
32 GAIN.

33 39-175. Deceased minor records; prohibited disclosures;
34 exceptions; violation; classification; civil
35 action; discipline or termination of employees

36 A. THE FOLLOWING RECORDS ARE CONFIDENTIAL AND MAY NOT BE DISCLOSED
37 PURSUANT TO THIS CHAPTER OR ANY OTHER LAW:

38 1. AN IMAGE THAT DEPICTS A DECEASED MINOR.

39 2. ANY LAW ENFORCEMENT BODY-WORN CAMERA RECORDING, DASH CAMERA
40 RECORDING OR OTHER LAW ENFORCEMENT VIDEO RECORDING THAT DEPICTS A DECEASED
41 MINOR OR THE ~~[SCENE]~~ [LOCATION] WHERE THE MINOR'S DEATH OCCURRED~~[, IF~~
42 KNOWN].

43 3. ANY EMERGENCY CALL RECORDING.

44 4. ANY PHOTOGRAPH, VIDEO RECORDING OR DIGITAL IMAGE OF ANY PART OF
45 THE BODY OF A DECEASED MINOR THAT IS CREATED DURING A DEATH
46 INVESTIGATION.

47 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A RECORD LISTED IN
48 SUBSECTION A OF THIS SECTION MAY BE DISCLOSED TO THE FOLLOWING:

1 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR UNLESS THE
2 PARENT OR LEGAL GUARDIAN IS THE SUBJECT OF AN INVESTIGATION INVOLVING
3 HOMICIDE OR CHILD ABUSE OF THE DECEASED MINOR.

4 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
5 MINOR.

6 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR, MEDICAL EXAMINER [, CHILD
7 WELFARE AGENCY] OR OTHER GOVERNMENT ENTITY AS PART OF AN OFFICIAL
8 INVESTIGATION OR [CRIMINAL CASE] [COURT PROCEEDING].

9 4. A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF COMPETENT
10 JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER GOOD
11 CAUSE EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:

12 (a) THE PRIVACY INTERESTS OF THE DECEASED MINOR'S SURVIVING FAMILY
13 MEMBERS.

14 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
15 A PUBLIC OFFICIAL OR AGENCY.

16 (c) WHETHER THE DISCLOSURE WILL CAUSE EMOTIONAL HARM OR TRAUMA TO
17 THE DECEASED MINOR'S SURVIVING FAMILY MEMBERS.

18 C. IN A CRIMINAL CASE INVOLVING A DECEASED MINOR, THE PROSECUTOR
19 [MAY] [SHALL] DISCLOSE THE RECORDS LISTED IN SUBSECTION A OF THIS SECTION
20 TO THE DEFENDANT'S ATTORNEY AS PROVIDED BY LAW AND COURT RULE. THE
21 DEFENDANT'S ATTORNEY [MAY SHARE THE RECORDS WITH A PERSON WHO IS EMPLOYED
22 TO ASSIST WITH THE DEFENSE IN THE CRIMINAL CASE, BUT THE RECORDS] MAY NOT
23 [BE] FURTHER [DISSEMINATE ANY RECORD] [DISSEMINATED] WITHOUT A COURT ORDER
24 ON A FINDING OF GOOD CAUSE.

25 D. IF A RECORD IS RELEASED PURSUANT TO SUBSECTION B OR C OF THIS
26 SECTION, THE PERSON RECEIVING THE RECORD IS PROHIBITED FROM FURTHER
27 DISSEMINATING THE RECORD [, EXCEPT AS FOLLOWS:

28 1. AS AUTHORIZED PURSUANT TO SUBSECTION B OR C OF THIS SECTION.

29 2. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR OR THE
30 PERSONAL REPRESENTATIVE OF THE DECEASED MINOR'S ESTATE MAY DISCLOSE A
31 RECORD LISTED IN SUBSECTION A OF THIS SECTION.

32 3. TO ANY PERSON OR ENTITY FOR ANY PURPOSE THAT IS RELATED TO
33 INVESTIGATING AN INSURANCE CLAIM OR PROSECUTION OR DEFENSE OF A PERSONAL
34 INJURY OR WRONGFUL DEATH CLAIM INVOLVING OR RELATING TO A DECEASED MINOR].

35 E. THIS SECTION DOES NOT APPLY TO A WRITTEN INCIDENT REPORT,
36 INVESTIGATIVE SUMMARY OR OTHER RECORD THAT DOES NOT CONTAIN A VISUAL
37 DEPICTION OF THE DECEASED MINOR OR AN EMERGENCY CALL RECORDING.

38 F. A PERSON WHO KNOWINGLY RELEASES A RECORD IN VIOLATION OF THIS
39 SECTION IS GUILTY OF A CLASS 1 MISDEMEANOR [, EXCEPT THAT IF THE PERSON WHO
40 VIOLATES THIS SECTION IS A GOVERNMENT OFFICIAL OR EMPLOYEE IT IS A CLASS 6
41 FELONY].

42 G. THE PARENT, LEGAL GUARDIAN OR ESTATE OF A DECEASED MINOR MAY
43 BRING A CIVIL ACTION AGAINST ANY PERSON WHO KNOWINGLY RELEASES, PROVIDES
44 OR DISSEMINATES A RECORD IN VIOLATION OF THIS SECTION. IN ANY ACTION
45 UNDER THIS SUBSECTION, THE COURT MAY AWARD THE FOLLOWING:

46 1. ACTUAL DAMAGES.

47 2. STATUTORY DAMAGES OF AT LEAST \$5,000 AND NOT MORE THAN \$50,000
48 FOR EACH VIOLATION. EACH RECORD THAT IS DISCLOSED OR DISTRIBUTED IN
49 VIOLATION OF THIS SECTION IS A SEPARATE VIOLATION.

1 3. REASONABLE ATTORNEY FEES AND COSTS.
2 4. INJUNCTIVE RELIEF PROHIBITING FURTHER DISSEMINATION.
3 H. A GOVERNMENT ENTITY MAY DISCIPLINE OR TERMINATE AN EMPLOYEE WHO
4 KNOWINGLY VIOLATES THIS SECTION.
5 39-176. Death scene images; prohibited monetization; civil
6 penalty; exceptions
7 A. A PERSON MAY NOT MONETIZE OR PROFIT FROM A DEATH SCENE IMAGE
8 THAT IS OBTAINED PURSUANT TO THIS ARTICLE.
9 B. A PERSON WHO VIOLATES THIS SECTION IS SUBJECT TO A CIVIL PENALTY
10 OF \$100,000 FOR EACH VIOLATION.
11 C. THIS SECTION DOES NOT APPLY TO A DEATH SCENE IMAGE WHEN THE
12 IMAGE IS EITHER:
13 1. USED IN A CRIMINAL PROSECUTION OR OFFICIAL INVESTIGATION.
14 2. POSSESSED BY THE PARENT, LEGAL GUARDIAN OR ESTATE OF THE
15 DECEASED MINOR.
16 3. DISCLOSED PURSUANT TO A COURT ON A SHOWING OF GOOD CAUSE UNLESS
17 SPECIFICALLY PROHIBITED BY THE COURT.
18 39-177. Child abuse records; prohibited disclosure;
19 exceptions; good cause determination
20 A. CHILD ABUSE RECORDS ARE CONFIDENTIAL AND ARE NOT SUBJECT TO
21 DISCLOSURE PURSUANT TO THIS ARTICLE.
22 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A CHILD ABUSE
23 RECORD MAY BE DISCLOSED TO THE FOLLOWING:
24 1. THE PARENT OR LEGAL GUARDIAN OF THE MINOR UNLESS THE PARENT OR
25 LEGAL GUARDIAN IS THE SUBJECT OF THE CHILD ABUSE INVESTIGATION OR A
26 HOMICIDE INVESTIGATION.
27 2. THE MINOR'S LEGAL REPRESENTATIVE.
28 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR [, MEDICAL EXAMINER, COURT]
29 OR CHILD WELFARE AGENCY FOR THE PURPOSE OF AN INVESTIGATION OR [FORMAL]
30 [COURT] PROCEEDING.
31 ~~[4. THE DEFENDANT'S ATTORNEY IN A CRIMINAL CASE INVOLVING THE MINOR~~
32 ~~AS PROVIDED FOR BY LAW AND COURT RULE. ANY RECORDS DISCLOSED TO THE~~
33 ~~DEFENDANT'S ATTORNEY PURSUANT TO THIS PARAGRAPH MAY NOT BE FURTHER~~
34 ~~DISSEMINATED WITHOUT A COURT ORDER ON A FINDING OF GOOD CAUSE.~~
35 ~~5.]~~ [4.] A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF
36 COMPETENT JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER
37 GOOD CAUSE EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:
38 (a) THE PRIVACY AND SAFETY INTERESTS OF THE MINOR.
39 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
40 A PUBLIC OFFICIAL OR AGENCY.
41 (c) WHETHER THE DISCLOSURE WILL CAUSE PSYCHOLOGICAL HARM OR TRAUMA
42 TO THE MINOR.
43 C. THIS SECTION DOES NOT PROHIBIT [EITHER OF THE FOLLOWING:
44 1.] THE DISCLOSURE OF A WRITTEN REPORT, AN INVESTIGATIVE SUMMARY OR
45 STATISTICAL INFORMATION THAT DOES NOT CONTAIN A VISUAL DEPICTION OR AUDIO
46 RECORDING [OR TRANSCRIPT] OF THE MINOR VICTIM.
47 [2. THE DEPARTMENT OF CHILD SAFETY FROM DISCLOSING CHILD ABUSE
48 RECORDS PURSUANT TO SECTION 8-807.

1 D. IN A CRIMINAL CASE, THE PROSECUTOR SHALL DISCLOSE CHILD ABUSE
2 RECORDS TO THE DEFENDANT'S ATTORNEY AS PROVIDED FOR BY LAW AND COURT RULE.
3 THE DEFENDANT'S ATTORNEY MAY SHARE THE CHILD ABUSE RECORDS WITH A PERSON
4 WHO IS EMPLOYED TO ASSIST WITH THE DEFENSE IN THE CRIMINAL CASE, BUT THE
5 CHILD ABUSE RECORDS MAY NOT BE FURTHER DISSEMINATED WITHOUT A COURT ORDER
6 ON A FINDING OF GOOD CAUSE.]

7 ~~[D.]~~ [E.] A PERSON WHO RECEIVES A CHILD ABUSE RECORD PURSUANT TO
8 SUBSECTION B OF THIS SECTION MAY NOT FURTHER DISSEMINATE THE RECORD.

9 39-178. Death scene images; deceased minor and child abuse
10 records; civil action; enforcement; investigation
11 authority

12 A. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY IN THE COUNTY WHERE
13 THE RECORD ORIGINATED OR THE CITY OR TOWN ATTORNEY IN THE CITY OR TOWN
14 WHERE THE RECORD ORIGINATED MAY BRING A CIVIL ACTION TO ENFORCE THIS
15 ARTICLE. IN ANY ACTION UNDER THIS ARTICLE, THE COURT MAY ORDER ALL OF THE
16 FOLLOWING:

17 1. THE IMMEDIATE REMOVAL OF THE DECEASED MINOR RECORD, DEATH SCENE
18 IMAGE OR CHILD ABUSE RECORD FROM ANY PLATFORM OR PUBLICATION THAT IS
19 SUBJECT TO THE COURT'S JURISDICTION.

20 2. THE IMMEDIATE DESTRUCTION OF ANY DECEASED MINOR RECORD, DEATH
21 SCENE IMAGE OR CHILD ABUSE RECORD THAT IS IN THE PERSON'S POSSESSION.

22 3. INJUNCTIVE RELIEF TO PREVENT ANY FURTHER MONETIZATION OR
23 DISTRIBUTION OF THE DECEASED MINOR RECORD, DEATH SCENE IMAGE OR CHILD
24 ABUSE RECORD.

25 B. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY OR THE CITY OR TOWN
26 ATTORNEY WHO HAS THE AUTHORITY TO FILE A CIVIL ACTION PURSUANT TO THIS
27 SECTION HAS THE AUTHORITY TO INVESTIGATE ANY ALLEGED VIOLATION OF THIS
28 ARTICLE, INCLUDING THE POWER TO SUBPOENA RECORDS OR EXAMINE A PERSON UNDER
29 OATH.

30 Sec. 5. Emergency

31 This act is an emergency measure that is necessary to preserve the
32 public peace, health or safety and is operative immediately as provided by
33 law."

34 Enroll and engross to conform

35 Amend title to conform

WENDY ROGERS

2406FloorROGERS.docx

06/1/2026

2:05 PM

C: SP

130EMMYVM